HH 72-26
HCH 2483/24

EX TEMPORE

ERNEST TSARUKANAYI MAUWA
versus
CARDIMIEL MHIKE
and
RM AFRICA PROPERTY CONSULTANTS (PRIVATE) LIMITED t/a RAWSON PROPERTIES
and
HAYES ZIMBABWE (PRIVATE) LIMITED
and
THE SHERIFF OF ZIMBABWE (N.O)

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 30 October 2025, 4 November 2025, and 28 January 2026.

Opposed Application

TC Masara for the applicant
TE Gumbo for the 1st respondent
No appearance for the 2nd-4th Respondents.

DEME J: The Applicant approached this court with a court application for interdict. More particularly, the applicant is seeking the following relief:

> "1. 1st respondent be and is hereby interdicted from interfering with applicant's right to possession, occupation and use of a certain piece of land situate in the district of Salisbury called stand 17789 Tynwald Township of Lot 12 of Tynwald measuring 510 square metres and from otherwise causing disturbance thereto.
> 2. 1st respondent be and is hereby ordered to remove or cause to be removed, from the property described in paragraph 1, all assets of any kind or description which he may have placed or caused to be placed at, or within, same.
> 3. 1st respondent, his assignees, subtenants, invitees and all those claiming right of occupation through him, is (sic) hereby ordered to vacate the property described in paragraph 1 failing which the Sheriff of Zimbabwe, or his lawful deputy be and is hereby authorised to eject the 1st respondent, his assignees, subtenants, invitees and all those claiming right of occupation through him, from the said property.
> 4. Applicant be and is hereby authorised to demolish or cause to be demolished and remove or cause to be removed, at the 1st respondent's expense, any form of development of any structure or super structure on the property described in paragraph 1.

5. The Sheriff of Zimbabwe or his lawful deputy be and is hereby authorised to give effect to paragraph 4 of this court order.
6. 1st respondent shall pay the costs of suit on a legal practitioner and client scale."

In opposition to the present application, the 1st Respondent raised some points *in limine* which were eventually abandoned on the day of the hearing of this matter. The Applicant also abandoned his points *in limine,* which he raised against the opposing papers filed. Thus, the parties concentrated on the merits of the matter.

The Applicant averred that, in 2019, he purchased the property known as stand 17789 Tynwald Township of Lot 12 of Tynwald measuring 510 square metres (hereinafter called "the property") from the 2nd and the 3rd Respondents. The Applicant attached the agreement of sale in support of the allegation. At the time of purchase, the property was vacant according to the Applicant.

The Applicant further alleged that he was advised that the area can only be developed upon the issuance of the certificate of compliance by the City of Harare. He further affirmed that the certificate of compliance was subsequently issued in March 2022.

It was the testimony of the Applicant that he discovered, sometime in October 2021, that the 1st Respondent was in occupation of the disputed property. According to the Applicant, he was advised by the 1st Respondent that he was also claiming to have purchased the same property. The Applicant was forced to approach this court on an urgent basis seeking interdictory relief against the 1st Respondent in case number HC5386/21 which was eventually struck from the urgent roll by this court.

By consent, the Applicant and the 1st Respondent concluded a deed of settlement where they agreed that pending the finalization of the matters in case numbers HC9355/19 and HC130/20, none of the parties was to develop the property in dispute. The parties requested this court to reduce the deed of settlement into an order of the court. However, the request was never implemented. Meanwhile, the matter in case number HC9355/19 was struck from the roll. The Applicant eventually abandoned the matter in case number HC5386/21 and instituted the present application.

The Applicant maintained that the present application meets the essential requirements of an application for interdict. He claimed that the continued occupation of his property by the 1st Respondent is causing prejudice to him. It was averred by the Applicant that the agreement of

sale establishes his clear right to the property. The Applicant additionally affirmed that there is no other remedy that is available.

The application was opposed by the 1st Respondent. The 1st Respondent claimed that the agreement of sale is not valid. He further averred that the sellers of the property are not owners of the property and hence cannot sell the property which they do not own. The 1st Respondent also maintained that by the date of signing of the alleged agreement between the Applicant and his sellers, he was in occupation of the property. However, the 1st Respondent did not supply further details on this point. The 1st Respondent claimed that he purchased the property in 2020 from Hermysh Katsande.

According to the 1st Respondent, the 2nd and 3rd Respondents ought to have granted the Applicant vacant possession of the property if the sellers are true owners of the property. The 1st Respondent affirmed that the real dispute before the court is the issue of double sale, which cannot be resolved through an interdict. He further alleged that there is a need to rank the two sales before a decision is reached by the court.

The 1st Respondent further claimed that the Applicant does have personal rights to the property which cannot be enforced against third parties. He averred that the present application seeks to demolish his dwelling, which is nearly complete, through an interdictory relief, which is inappropriate according to the 1st Respondent. The 1st Respondent alleged that the present interdictory application seeks his eviction from the property. The 1st Respondent alleged that the Applicant cannot seek eviction through an interdict. The 1st Respondent also affirmed that the Applicant does have alternative remedies at his disposal. The 1st Respondent claimed that the Applicant can claim an order for specific performance from the 2nd and 3rd Respondents. He further maintained that the Applicant can also claim an alternative piece of land from the 2nd and 3rd Respondents instead of the present application.

The 1st Respondent averred that the present application does not establish the requirements of interdictory relief. According to the 1st Respondent, the Applicant failed to establish a clear right in respect of the property. He further stated that the Applicant failed to plead the requirements of eviction despite the fact that the Applicant is also seeking the eviction of the 1st Respondent from the property in dispute.

Mr. Masara, through oral submissions, argued that the Applicant bought the property from the authorized developers, i.e. the 2nd and 3rd Respondents, unlike the 1st Respondent who purchased the property from Hermysh Katsande. Mr. Masara argued that Hermysh Katsande had no authority to sell the property. On this basis, he further contended that the matter before the court cannot be categorized as a double sale, as Hermysh Katsande had no authority to sell the property.

He further submitted that the Applicant ought to be protected under such circumstances. Reference was made to the case of *Matengambiri and Another v Manzunzu*[1] which has facts that are similar to the present application, according to Mr. Masara.

Mr. Masara also referred the court to the order in case number HC130/20. According to Mr. Masara, the 4th Respondent participated in the transaction which saw a list of residential stands in case number HC130/20 being transferred to the 2nd and 3rd Respondents as payment of fees for the development of the Remainder of Lot 12, Tynwald held under Deed of Transfer Number 4209/86, (hereinafter called "the entire area"). The property in dispute is part of the property list allocated to the 2nd and 3rd Respondents.

Realising that the order in HC130/20 is not part of the record, Mr. *Masara* successfully sought leave that such order be filed. Mr. *Masara* also sought leave to file a subdivision permit in

Gumbo submitted that the Applicant seeks to enforce the contract against the 1st Respondent who is not a party to the contract sought to be enforced. He further submitted that the contract creates personal rights which cannot be enforced against third parties. Mr. *Gumbo* also submitted that the contract cannot create a clear right on that basis. Responding to this, Mr. *Masara* claimed that the transaction is more than a contract, as the 4th Respondent was heavily involved in the finalisation of the transaction. He submitted that the transaction is a quasi-judicial sale.

Mr. *Gumbo* further maintained that Hermysh Katsande is challenging the 4th Respondent's authority to participate in the sale of the 228 stands in case number HCH117/24. He argued that the Applicant cannot claim to have a clear right where the authority of the 4th Respondent is being challenged. He, however, highlighted that the application in case number HCH117/24 was

[1] HH235/23.

deemed abandoned. According to Mr. Gumbo, there are attempts to resuscitate the abandoned application in case number HCH5582/25.

Mr. Gumbo insisted that the Applicant has alternative remedies. According to Mr. Gumbo, the Applicant can sue for damages. He further submitted that the balance of convenience favours the dismissal of the present application as the 1st Respondent does have a dwelling on the property which is almost complete. Mr. Gumbo submitted that the 1st Respondent is an innocent purchaser. He further contended that the present application does not suggest that the 1st Respondent is a *mala fide* purchaser. Responding to the question for the balance of convenience, Mr. Masara argued that the balance of convenience is not a requirement for the present application. No case law was advanced in this regard.

Mr. Gumbo also submitted that the Applicant is seeking to interdict a past event, which is contrary to the case law. Reference was made to the case of *Airfield Investments (Pvt) Ltd v The Minister of Lands, Agriculture and Rural Resettlement & Others*[2]. He also claimed that the Applicant never occupied the property.

The Applicant, through his counsel, Mr. Masara, argued that the 1st Respondent's structure at the property is illegal. Mr. Gumbo insisted that the dwelling is a legal structure constructed according to an approved plan.

On 4 November 2025, I directed the parties to file further evidence for me to be able to have a clear picture of the situation on the ground. The order of 4 November 2025 is as follows:

> "1. The Applicant shall file the order in HC130/20 and subdivision permit by 6 November 2025.
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> 2. The 1st Respondent shall file the 1st Respondent's approved plan by 6 November 2025.
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> 3. The Applicant may, if he so wishes, file Supplementary Heads by 10 November 2025.
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> 4. The 1st Respondent may, if he so wishes, file Supplementary Heads by 13 November 2025.
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> 5. The Judgment shall, thereafter, be reserved."

The Applicant complied with the order of 4 November 2025 by filing the requisite documents. A letter from the City of Harare approving the subdivision of the entire area was filed dated 15 April 2019. The order in HC130/20 was also filed by the Applicant. The order is as follows:

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[2] 2004 (1) ZLR 511(S)

"1. Matters HC130/20 and HC9355/19 are hereby consolidated, which consolidation is directed to take place no later than 24 January 2020.

2. Pending the determination of HC9355/19 and HC130/20 at (sic) consolidated until finalization, the respondents be and are hereby interdicted from allocating, disposing of, selling and / or dealing in any matter whatever with the residential stands from the Remainder of Lot 12, Tynwald held under Deed of Transfer Number 4209/86, save for 228 stands signed off by the 6th respondent to the 1st and 2nd respondents on 11 December 2019, more fully described in Annexure "a" to this order.

3. Thereafter, the matters as consolidated, in terms of paragraph 1 thereof, shall proceed in terms of the High Court Rules 1971.

4. Costs shall be in the cause."

In case number HC130/20, the 1st and 2nd Respondents are the 2nd and 3rd Respondents in this matter, respectively while the 6th Respondent is the 4th Respondent in this matter.

In the supplementary heads, the Applicant insisted that the sale between the 1st Respondent and Hermysh Katsande is an illegality. For this reason, the Applicant argued that the court cannot enforce an illegal transaction. Reference was made to the cases of *Petromoc Exor (Private) Limited v Chimedza & Others*[3] and *ANZ (Private) Limited v Minister of State for Information and Publicity*[4]. On this basis, the Applicant argued that the approved plan filed by the 1st Respondent is of no consequence since the whole transaction concluded by the 1st Respondent and Hermysh Katsande is tainted with illegality.

The 1st Respondent filed the document which he called approved plan. Such document is dated 13 October 2021. There is a stamp for City of Harare which suggests that the plan was approved.

On 11 November 2025, the 1st Respondent filed a letter where they were alleging that the 4th Respondent sought to distance the office from the transaction of 228 stands referred to in the order in case number HC130/20. The contents of the 1st Respondent's letter are as follows:

"It has been brought to our attention that the 4th Respondent in this matter actually tendered a report wherein he withdrew his signature to the agreement which the Applicant alleges gave the 2nd Respondent title to the disputed stand. See attached report. This report is not entirely clear for reading but the material portions are there to see and to ensure finality on its authenticity we have

[3] SC49/23.
[4] **2004 (1) ZLR 538(S).**

been instructed to seek the leave of the Court for the Sheriff to be called upon to confirm that report. Such a course is imperative given the centrality of the document to the whole dispute and its obvious relevance to the other pending litigation.

We await the guidance of the Court on the issue."

The Applicant's legal practitioners expressed their shock at the contents of the 1st Respondent's legal practitioners. According to the Applicant's legal practitioners, this letter raised new issue which was not before the court. The Applicant, through his legal practitioners submitted that the letter is irregular and prayed for the expunging of the letter from the record.

On the merits, the Applicant's legal practitioners submitted that the report referred to by the 1st Respondent is dated 15 August 2019 while the 4th Respondent's affidavit in this matter is dated 20 February 2020. The Applicant's counsel argued that it is incompetent for the 1st Respondent to invite the court to interpret the report in retrospect. The Applicant additionally contended that the 1st Respondent failed to demonstrate any basis why he believes that the report of 15 August 2019 should be ranked over the affidavit deposed to later. The Applicant further argued that the report is of no probative value as it was not under oath. Reference was made to the case of *Zimunhu v Gwati and Ors*[5].

The Applicant also affirmed that the report was authored pursuant to the matter in case number HC6429/19, where the Applicant therein sought contempt of court, which was subsequently consolidated with the matter in case number HC8563/18, which was an application for rescission of default judgment. The application for contempt of court was struck from the roll. Reference was made to the judgment number HH214/20. The Applicant argued that the 1st Respondent is asking this court to revisit the same report, which is irregular.

After examining the application, oral submissions, supplementary evidence, and supplementary heads, I am left with unanswered questions that cannot be resolved by way of affidavits. It is clear that the Applicant is not disputing the authenticity of the approved plan filed by the 1st Respondent as part of the supplementary evidence. It was submitted by the 1st Respondent that he constructed the dwelling at the property in dispute, which is nearly complete. He further submitted that the structure was constructed according to the approved plan. This was not strongly disputed by the Applicant in the answering affidavit, together with supplementary evidence. On this basis, I am unable to grant the relief prayed for without the hearing of further

[5] 2002 (1) ZLR 602 (S).

evidence. There is a need to hear further evidence in order to determine whether the interdictory relief coupled with the prayer for the demolition can be appropriate under the circumstances where the 1st Respondent alleges that he has a legal structure on the property.

Where the court is faced with material disputes, the court does have various options at its disposal which may be exploited to resolve the dispute before the court. Reference is made to the case of *Muzanenhamo v Officer in Charge CID Law and Order and Ors* [6], The court can make one of the following decisions:

- Dismissing the matter where it was apparent from the beginning that the matters involved cannot be resolved by way of motion procedure. I did not make this decision as this would not bring finality to litigation. For the court to dismiss the matter, it must be convinced that there are material disputes which were foreseeable to the Applicant at the time of filing the application.

- Employ a robust and common-sense approach where the court proceeds to make its determination based on available evidence. In my view, this approach does not promote finality to litigation between the parties hereto. Hence, I did not explore this route.

- Striking the application from the roll allowing the parties to re-commence by way of action procedure. In my opinion, this route is not in the interest of justice as it delays the finalisation of the dispute.

- In terms of Rule 58(12) of the High Court Rules, 2021, this court may call for oral evidence where the court is of the view that it is in the interest of justice to do so. I did not explore this available option as this was not in the interest of justice. In my view, this matter requires a comprehensive approach which will allow the dispute to be fully ventilated.

- Referral of the matter to trial for resolution of the dispute through oral evidence. In my view, this option is the best remedy available which allows the conclusive resolution of the dispute. The court must, as far as possible, endeavour to ensure that the dispute

[6] CCZ3/13

between the parties is resolved in a more expedient and just manner with regard being had to the circumstances of each and every case. Referral of this matter to trial achieves this purpose in the circumstances. The actual position of the 4th Respondent, which was made an issue by the parties according to the supplementary evidence filed by the parties, can also be clarified through trial procedure.

An action procedure has generally been regarded as a more disciplined way of resolving disputes than an application procedure. In the case of *Mashingaidze v Mashingaidze*[7] Robinson J superlatively remarked as follows:

> "The Applicant may indeed be able to put forward her claim for relief on alternative grounds when re-commencing proceedings by way of action, a procedure which lends itself more appropriately, both from a pleading and from an evidence point of view, to a resolution of the issues in this matter. In this connection, I would refer again to Masukusa's case *supra*, in which, in giving a more general reason as his third reason for dismissing the application, Mc NALLY J (as he then was) stated at 236F- 237A:
> "Procedure by way of notice of motion, though often convenient, is far less disciplined than procedure by action. A good novelist can write a series of exciting affidavits and at the end claim large sums of money. It takes a lawyer to draw a declaration.
> To draw a declaration it is necessary to analyse your claim and decide exactly what you have to prove.""

There is need to ensure that the Applicant relodges the present matter by way of the Plaintiff's Declaration while the founding papers shall be considered to be summons. Allowing the Applicant to file Declaration will enable the issues to be clearer as amplified by the case of *Mashingaidze v Mashingaidze supra*.

Accordingly, the following order is made:

The matter be and is hereby referred to trial under the following conditions:

A. The Applicant's founding papers shall be deemed to be summons while the 1st Respondent's opposing papers shall be considered to be appearance to defend.
B. The Applicant / Plaintiff shall file the Plaintiff's declaration within ten days from the date of the granting of this order.
C. Thereafter, the matter shall proceed in terms of the rules.
D. Costs shall be in the cause.

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[7] 1995 (1) ZLR 219 at 226

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DEME J. …….. …….

Masara Savanhu Attorneys, applicant's legal practitioners
Chinawa Law Chambers, 1st respondent's legal practitioners